

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 4302

By: Pae

AS INTRODUCED

An Act relating to children; amending 10 O.S. 2021, Section 601.6, as amended by Section 1, Chapter 178, O.S.L. 2025 (10 O.S. Supp. 2025, Section 601.6), which relates to the Office of Juvenile System Oversight; authorizing the Office to subpoena certain records; authorizing the release of certain information for certain purposes; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 10 O.S. 2021, Section 601.6, as amended by Section 1, Chapter 178, O.S.L. 2025 (10 O.S. Supp. 2025, Section 601.6), is amended to read as follows:

Section 601.6. A. For purposes of this section, the term "children and youth service system" shall have the same meaning as it is defined in Section 600 of this title.

B. The Office of Juvenile System Oversight shall have the responsibility of inspecting and investigating misfeasance and malfeasance within the children and youth service system, as

1 directed by the Oklahoma Commission on Children and Youth, to  
2 ascertain compliance with established responsibilities.

3 C. The Office shall conduct not less than one but not more than  
4 two regular, periodic, unannounced inspections of state-operated  
5 children's institutions and facilities annually. The Office is  
6 further authorized to inspect privately operated children's  
7 institutions and facilities that receive state or federal funding,  
8 on a periodic basis or as needed.

9 D. The Office shall investigate complaints filed with the  
10 Office regarding the children and youth service system.

11 E. The Office of Juvenile System Oversight shall have the  
12 authority to:

13 1. Access all facilities within the children and youth service  
14 system for the purpose of conducting inspections and investigations;

15 2. Examine and copy all records and budgets pertaining to the  
16 children and youth service system and to review inspection reports  
17 of the State Fire Marshal, State Department of Health, and any other  
18 agency that accredits such institutions and facilities;

19 3. Interview the residents of institutions and facilities  
20 within the children and youth service system;

21 4. Subpoena child or juvenile records maintained by state-  
22 operated and privately-operated entities within the children and  
23 youth service system;

24 5. Subpoena witnesses and hold public hearings;

1       ~~5.~~ 6. Establish, in accordance with the Dispute Resolution Act,  
2 Sections 1801 through 1813 of Title 12 of the Oklahoma Statutes, a  
3 voluntary program for foster parents to mediate complaints  
4 concerning the rights of foster parents, as provided for in Section  
5 1-9-119 of Title 10A of the Oklahoma Statutes, that relate to  
6 certain actions, inactions or decisions of the Department of Human  
7 Services, the Department of Juvenile Justice, or child-placing  
8 agencies that may adversely affect the safety and well-being of  
9 children in the custody of the state;

10       ~~6.~~ 7. Receive any complaint alleging that an employee of the  
11 Department of Human Services or a child-placing agency has  
12 threatened a foster parent with removal of a child from the foster  
13 parent, harassed a foster parent, or refused to place a child in a  
14 licensed or certified foster home, or disrupted a child placement as  
15 retaliation or discrimination towards a foster parent who has:

- 16           a. filed a grievance pursuant to Section 1-9-120 of Title
- 17                 10A of the Oklahoma Statutes,
- 18           b. provided information to any state official or
- 19                 Department employee, or
- 20           c. testified, assisted, or otherwise participated in an
- 21                 investigation, proceeding, or hearing against the
- 22                 Department or child-placing agency.

23       The Office of Juvenile System Oversight shall forward the  
24 complaints to the Office of Client Advocacy for investigation

1 pursuant to subsection D of Section 1-9-112 of Title 10A of the  
2 Oklahoma Statutes. The Office of Juvenile System Oversight shall  
3 work with the Office of Client Advocacy to ensure the complaints are  
4 investigated and resolved in accordance with the grievance  
5 procedures provided in Section 1-9-120 of Title 10A of the Oklahoma  
6 Statutes. The provisions of this paragraph shall not apply to any  
7 complaint by a foster parent regarding the result of a criminal,  
8 administrative, or civil proceeding for a violation of any law,  
9 rule, or contract provision by that foster parent, or the action  
10 taken by the Department or a child-placing agency in conformity with  
11 the result of any such proceeding;

12 ~~7.~~ 8. Issue reports to the Governor, Speaker of the House of  
13 Representatives, President Pro Tempore of the Senate, Chief Justice  
14 of the Supreme Court of the State of Oklahoma, any appropriate  
15 prosecutorial agency, the director of the agency under  
16 consideration, and other persons as necessary and appropriate; and

17 ~~8.~~ 9. Provide recommendations to the Oklahoma Commission on  
18 Children and Youth on or before May 1 of each year.

19 F. The Office of Juvenile System Oversight shall not release  
20 information that would identify a person who makes a complaint to  
21 the Office, unless ~~a~~:

22 1. A court of competent jurisdiction orders release of the  
23 information for good cause shown; or

1        2. The disclosure of such information is needed to protect the  
2 safety of others if the complainant has communicated an explicit  
3 threat to kill or inflict serious bodily injury upon a reasonably  
4 identified person or has communicated an explicit threat against any  
5 entity. The Office shall be deemed to have taken reasonable  
6 precautions if it makes a reasonable effort to:

7            a. communicate the threat to the reasonably identified  
8            person or entity, and

9            b. notify an appropriate law enforcement agency in the  
10           vicinity where the complainant or any potential victim  
11           resides.

12        SECTION 2. This act shall become effective November 1, 2026.

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